
NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("Agreement") is entered into as of _____ (date), by and between:

Insightek Global ("Disclosing Party"), a company incorporated under the laws of Karnataka, India, with its principal office at #59, 17th D Cross, 15th Main, JP Nagar 5th Phase, Bangalore – 560078, Karnataka, India, and _____ ("Receiving Party"), residing at _____ (full address).

The Disclosing Party and Receiving Party may collectively be referred to as the "Parties" and individually as a "Party."

In consideration of the employment between the receiving party and the Disclosing party the Company provide the receiving party with access to Company trade secret, confidential and proprietary business information during my employment, and for other good and valuable consideration, including, but not limited to my employment with the Company, the receipt of which I hereby acknowledge, I _____, affirm my obligations to the Company and agree to the covenants set forth in this Non-disclosure Agreement (the "Agreement").

A. NON-DISCLOSURE OF CONFIDENTIAL AND TRADE SECRET INFORMATION: I

understand that, by reason of my employment with the Company, I will obtain access to Company Confidential and Trade Secret information. I agree to protect and hold in confidence all Trade Secrets and Confidential Information belonging to the Company that I receive through or as a result of my employment by the Company. I shall neither disclose, use, divulge nor communicate to any third party any Confidential Information or Trade Secrets belonging to the Company, except in the course of my performing duties as an employee of the Company. For purposes of this Section A, "Confidential Information" means confidential data and confidential information relating to the Company's business (which does not rise to the status of a Trade Secret) that has value to the Company and is not generally known to its competitors, such as Company sales techniques, pricing information, technical practices, marketing information, profit margins, customer preferences, customer lists, and other marketing and sales information that would have value if disclosed to competitors.

For purposes of this Agreement, "Confidential Information" shall also mean any and all non-public information the Company has disclosed or may disclose to me, including but not limited to, information related to: production of legal materials, software development and design, business or software architecture, software not yet known to the public, clients or prospective clients, internal communications, events, or meetings, or any other research, development, operations, marketing, transactions, regulatory affairs, discoveries, inventions, methods, processes, articles, materials, algorithms, formulas, specifications, designs, drawings, data, strategies, plans,

prospects, know-how and ideas, whether tangible or intangible, and including all copies, analyses and other derivatives thereof. For purposes of this Section A, "Trade Secrets" means information, including, but not limited to, technical or non- technical data, formulas, patterns, compilations, programs, devices, methods, techniques, drawings, processes, financial data, financial plans, product or service plans or lists of actual or potential customers or suppliers or customer preferences that

(i) derives economic value, actual or potential, from not being generally known to, and not being readily ascertainable by proper means, by other persons who can obtain economic value from its disclosure or use; and

(ii) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy.

It is pertinent to mention herein that the definition of confidential information as well as trade secrets must not be deemed exhaustive confined to agreement only instead such be deemed inclusive based upon the explanations given by the court of Law in India. Upon the request of Company, I agree to execute any additional instrument that the Company considers necessary to secure, for the benefit of the Company or Company's client(s), adequate confidentiality protections with respect to my employment with the Company. If required by Company, I agree to execute additional confidentiality agreements directly with Company's clients as may be required to secure adequate confidentiality obligations for the benefit of Company and Company's clients.

B. TIME PERIOD: I agree that the non-disclosure provisions of this Agreement shall survive the termination of this Agreement and I am duty bound to hold Confidential Information in confidence which shall remain in effect until the Confidential Information no longer qualifies as a trade secret or until Insightek Global Consulting Pvt Ltd. sends other Party written notice releasing him/her from this Agreement, whichever occurs first. Exceptions. The confidentiality obligations hereunder shall not apply to Confidential Information which:

A. is, or later becomes, public knowledge other than by breach of the provisions of this Agreement; or

B. is in the possession of the Party with the full right to disclose prior to its receipt from the Disclosing Party, as evidenced by written records; or

C. is independently received by the Receiving Party from a third party, with no restrictions on disclosure.

C. INTELLECTUAL PROPERTY RIGHTS: I hereby assign to the Company, its successors, and assigns, all my rights in all Intellectual Property that I make or conceive whether as a sole inventor or as a joint inventor, whether made within or outside working hours or upon the premises of the Company or elsewhere, during my employment with the Company. I understand and acknowledge that Intellectual Property means, for purposes of this Agreement, any information of a technical and/or business nature such as ideas, discoveries, inventions, trade secrets, know how, and writings or other works

of authorship that relate in any manner to the actual or anticipated business or research and development of the Company, its affiliates or subsidiaries. Upon the request of and at the expense of the Company or its nominee, I agree to execute any instrument that the Company considers necessary to secure for or maintain for the benefit of the Company adequate patent and other property rights in India and all foreign countries with respect to any Intellectual rights. Upon the termination of my employment, I agree to promptly turn over to the Company all models, prototypes, drawings, records, documents, computer disks or files, and the like in my possession or under my control, whether prepared by me or others, relating to Intellectual Property, and any other work done for the Company related thereto. I acknowledge that all such items are the sole property of the Company. I agree that I am not entitled to use the Intellectual Property for my benefit or the benefit of anyone except the Company, without the written permission of the Company. I also agree and understand that any such action of mine tantamount to violation of Law which may attract penal provisions.

D. RESTRICTIVE COVENANTS : I acknowledge that I have received or will receive from the Company valuable instruction and training, as well as access to Company Confidential and Trade Secret information, and that my services to be rendered, as well as the Company's Confidential and Trade Secret information, are of a special character that has unique value to the Company, the loss of which will cause damages to the Company in an amount not readily calculable. Given this unique value, my access to confidential and trade secret information and the training that the Company has or will provide me, the expenditure of money or effort to be incurred by the Company in connection with my employment, in light of the consideration and Confidential Information to be provided to me as set forth above, and as a material inducement to the Company to employ or continue to employ me, I covenant and agree as follows: Non-Recruiting. I agree that during my employment and for a period of one (1) year following the cessation of my employment, I will not directly or indirectly induce, solicit, encourage, offer employment to, employ, or recruit any individual who is an employee or contractor of the Company, or who had been an employee or contractor of the Company within the six-month period preceding the date my employment with the Company ceased, to terminate his or her employment or services with Insightek Global Consulting Pvt Ltd.

E. NON-COMPETITION : I agree that during my employment and for a period of three (3) months following the cessation of my employment I will not, directly or indirectly, compete with the Company by performing activities of the type I performed for the Company within the one (1) year period prior to my termination, for any business or entity which offers products or services which are the same as or similar to those offered by the Company at the time my employment ceases. Likewise, I will not perform activities of the type which in the ordinary course of business would involve the

utilization of Confidential Information or Trade Secrets protected from disclosure by Part B of this Agreement. This paragraph restricts competition only within a fifty-mile radius of any Company facility where I worked within the last two (2) years of my employment. I understand that this Agreement does not prohibit me from engaging in activity and/or employment that is unrelated to the work I performed for the Company.

F. NON-SOLICITATION : I acknowledge and agree that during my employment with the Company and for a period of one (1) year following the termination of my employment, I will not, directly or indirectly: (i) solicit, divert, or engage in business with any client, customer, or business partner of the Company to whom I provided services or with whom I interacted in connection with the Company's business; or (ii) accept employment, provide services, or engage in any professional capacity—whether directly, indirectly, or as a shadow resource—with any client, customer, or competitor of the Company in the same or a substantially similar role as my position at InsightTek.

G. RETURN OF PROPERTY: I recognize that the Company will provide me with the tools necessary to perform my job, and that these tools are the property of the Company or the Client exclusively. Should my employment be terminated for any reason, whether voluntarily or involuntarily, and/or at the end of each assignment, I shall immediately return to the Company or the Client any of their property in my custody, control or possession.

H. CONSENT TO BE RECORDED. I hereby consent to the recording, documentation, and storage of my work output, including but not limited to written, verbal, visual, or digital contributions, as part of my professional responsibilities with the Company. I further acknowledge and agree that the Company may use, share, and distribute details of my work, including testimonials, case studies, or other representations of my contributions, for internal records, client communications, marketing purposes, and service enhancement. This consent extends to any medium or format deemed necessary for delivering and improving the Company's services to its clients, provided such use aligns with professional and ethical standards.

I. MISCELLANEOUS: As the Company is a member of the Insightek group of companies, I agree that my obligations extend to the other member-companies of InsightTek.

J. COMPLIANCE COMMITMENT: I agree I will comply with

- i. Company and Company's client(s)' policies.
- ii. Company and Company's client(s)' information security requirements, and
- iii. Company and Company's client(s)' confidentiality requirements; and
- b. assign Intellectual Property rights to Company and Company's client(s)' in accordance with Section A of this Agreement.

- c. I agree that the laws of India shall govern this Agreement, and terms of this agreement have been framed in consonance with the Indian Labour Laws, Copyright Law of India, 1957 and other relevant Laws prevailing in India.
- d. I agree that this Agreement supersedes any agreement or understanding previously existing between the Company and me relating to the matters contained herein.
- e. I agree that this Agreement is binding upon my heirs, executors, administrators, and legal representatives.
- f. I agree that if any provision of this Agreement is held to be unenforceable, the validity of the remaining provisions shall not be affected by such holding.
- g. I agree that if a court holds the restrictions in the Agreement are overbroad, I and the Company expressly request that the reviewing court modify the Agreement to permit enforcement of the Agreement to the maximum extent allowed by law.
- h. I agree that if the Company prevails in any action to enforce any provision of this Agreement and secures any relief, I shall pay to the Company all costs, expenses and attorney fees the Company incurs in so enforcing any part of this Agreement.
- i. I agree a waiver of any of my obligations under this Agreement or any other modification of this Agreement shall be ineffective unless it is set forth in writing and signed by a senior officer of the Company. No waiver, or failure to enforce, by either of the parties hereto of their rights hereunder shall be deemed to constitute a waiver with respect to any subsequent occurrences or transactions unless such waiver specifically states that it is to be construed as a continuing waiver. By signing this Agreement, I represent and warrant that I am not under any obligation to any person or other third party and do not have any other interest that is inconsistent or in conflict with this Agreement, or that would prevent, limit, or impair my performance of any of the covenants hereunder or my duties as an employee of the Company. I hereby agree as well as understand and acknowledge that any disclosure or misappropriation of any of the Confidential Information in violation of this Agreement may cause Insightek Global Consulting Pvt Ltd. irreparable harm, the amount of which may be difficult to ascertain and, therefore, agree that in such case Insightek Global Consulting Pvt Ltd. shall have the right to apply to a court of competent jurisdiction for an order restraining any such further disclosure or misappropriation and for such other relief as an order restraining any such further disclosure or misappropriation and for such other relief as Insightek Global Consulting Pvt Ltd. shall deem appropriate, and such right shall be in addition to remedies otherwise available at law or in equity.
- j. I agree that in case of sudden outbreak of any endemic, pandemic or in case wherein government restrictions have been put stringently and consequent

thereto changes / alterations have been adopted in company policies then I shall fully try to cooperate with new conditions without any complaint.

- k. Any breach or non-compliance of the agreement will lead to disciplinary action up to termination depending on the severity including legal actions if necessary.

IN WITNESS WHEREOF, the parties hereto have set and subscribed their respective hands and seals unto this Agreement on the date, day and year first set out hereinabove.

For Insightek Global Consulting Pvt Ltd



Name: Sushma A Patil
Designation: Assistant General Manager



Employee Name: Perumal P
Designation: Junior Software Developer
Date: 19/05/2026